

25STCV10909 25STCV10909

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Case Number: 25STCV10909 Hearing Date: August 18, 2026 Dept: 510

No.

11 - Sajma Wittmann v. Michael Finley, et al.

Plaintiff

Sajma Wittmann's Three Motions to Compel Production of Documents and Further Responses

Plaintiff

Sajma Wittmann filed three discovery motions: (1) Motion to Complete Production of Documents; (2) Motion to Compel Further Responses to First Set of General Discovery Requests; and (3) Motion to Compel Further Responses to First Set of Requests for Admission/First Set of Special Interrogatories. The Court notes that the motions seek to compel Defendant Michael Finley to provide further responses to Plaintiff's requests for production, special interrogatories, and requests for admission respectively. As such, the Court will treat the discovery motions as motions to compel further discovery responses.

Preliminary

Issues

The

Court acknowledges that Plaintiff asked for a stay of these discovery motions while her judicial disqualification motion is decided. Plaintiff requests this relief in her reply briefs and a separate, unnoticed filing submitted on August 7, 2026. The Court has reviewed both and declines to stay the proceedings. There is currently no disqualification motion pending and thus no basis to continue these hearings.

In

addition, Plaintiff's three discovery motions ask for various forms of other relief such as a protective order and a "discovery sequence" order. The reply briefs seek leave to file a declaration of necessity nunc pro tunc, a declaratory judgment, and \$900,000 in sanctions against Defendant Finley. The Court declines to consider Plaintiff's additional requests. Including these requests in a motion to compel further responses constitutes an improper omnibus motion. Plaintiff must raise these requests by way of properly noticed motions.

Compel
Further Responses

The
Court cannot grant the relief sought.

All three motions are untimely. "Unless notice of [a motion to compel further responses] is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the [requesting] party and the responding party have agreed in writing, the [requesting] party waives any right to compel" further responses. (CCP §§ 2030.300(c) [interrogatories], 2031.310(c) [requests for production], 2033.290(c) [requests for admission].) The 45-day deadline "renders the court without authority to rule on [late] motions to compel other than to deny them." *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) Enacting this deadline "indicates an intention by the Legislature not to vest any authority in the court" to rule on untimely motions to compel further responses. (*Id.* at p. 1409.)

Defendant served his discovery responses to requests for production, requests for admission, and special interrogatories on March 27, 2026. (Opps., Ex. A.) Plaintiff had until May 11, 2026 to file these motions. The motions were not filed until June 10 and June 29, 2026. Because the motions are untimely, the Court has no jurisdiction to rule on them.

In addition, Plaintiff did not file the requisite separate statements for each motion. California Rules of Court, rule 3.1345(a) provides, "Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement." This constitutes a separate ground for denial

of the motions.

Sanctions

Defendant

requests \$2,745 in monetary sanctions against Plaintiff. “[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2031.310(h) [requests for production]; CCP § 2030.300(d) [interrogatories]; CCP § 2033.290(d) [requests for admission].) Plaintiff unsuccessfully brought these three discovery motions. There is no indication that Plaintiff acted with substantial justification in doing so. Therefore, sanctions are appropriate.

However,

the Court exercises its discretion to reduce the fees requested by two-thirds. Defendant’s opposition briefs are almost identical to one another and consist only of a one-and-a-half page memorandum of points and authorities and a two-page declaration, along with exhibits. Thus, Defendant is entitled to \$915 in sanctions.

Disposition

Plaintiff

Sajma Wittmann’s three motions to compel production of documents and further responses are denied.

Plaintiff

Sajma Wittmann is hereby ordered to pay Defendant Michael Finley \$915 in sanctions within 21 days.